



File No.: EXP202314242

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 20, 2023, MR. A.A.A. filed a complaint with the Spanish Agency for Data Protection against CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E with NIF A28799120 (hereinafter, the complained party or CORREOS EXPRESS). The reasons for the complaint are as follows:

The complainant states that on September 20, 2023, CORREOS EXPRESS delivered a package without his consent to a neighbor (whom he does not know) despite the fact that he was at home at the time of delivery. He claims that he did not give his consent for that package to be delivered to any neighbor.

The complainant considers that the aforementioned action violates data protection regulations. Along with the complaint, he provides a document containing the tracking information of the shipment and the delivery receipt, which includes the complainant's details (name, surname, and postal address) and those of the person who received the package.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party/ALIAS, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 17, 2023, as recorded in the receipt certificate in the file.

On November 14, 2023, a response was received by this Agency indicating that "...Following the internal investigation initiated by Correos Express, as outlined in section 1 of this document, the following facts have been clarified:

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On September 18, 2023, a shipment originating from Portugal was processed, with shipment code No. (...), whose recipient was the claimant and the sender was the company BARKYN, which is a client of the transport company CEP II - Correos Express Portugal, S.A. (formerly known as Rangel Expresso II, S.A., hereinafter referred to in this document as "Correos Express Portugal"). Correos Express and Correos Express Portugal have entered into a collaboration agreement under which Correos Express delivers shipments processed by Correos Express Portugal originating from Portugal and destined for Spain. We attach to this document as ANNEX 1 the data of shipment No. (...) that appears in the information systems of Correos Express and as ANNEX 2 the collaboration agreement between Correos Express Portugal and Correos Express.

On September 20, 2023, the carrier responsible for delivering the shipment arrived at the destination address. At this point, we must inform you that the delivery person is an employee of the transport company DAFNEVIA, S.L., a provider of Correos Express. We attach to this document the following documentation that proves the commercial relationship between DAFNEVIA, S.L. and Correos Express: Award Agreement for Specific Contract CO2021023 002, in which the company DAFNEVIA, S.L. is awarded lot No. 3 (ANNEX 3); Specific contract for collection, transport, and distribution of parcels at the national level CO2021023 002 (ANNEX 4); and the service agreement signed between DAFNEVIA, S.L. and Correos Express, which is part of the necessary documentation to be an approved supplier in the SDA CO2021023 (ANNEX 5).

Once this point has been clarified and continuing with the account of the facts, the systems of Correos Express indicate that the shipment was delivered on September 20, 2023, at 14:43 at the address indicated in the destination address of the shipment. We provide the proof of delivery corresponding to this shipment as ANNEX 6.

After the delivery of the shipment on September 20, 2023, and until the receipt of the transfer of the complaint by the AEPD, Correos Express did not receive any communication or complaint from either the recipient or the sender of the shipment. In the information systems of Correos Express, there is only a request from the claimant dated September 19, indicating their preferred time slot for receiving the shipment. We attach as ANNEX 7 to this document the information that appears in the information systems of Correos Express regarding communications related to the shipment subject to the complaint.

On October 17, 2023, Correos Express received the request for the transfer of the complaint and request for information from the Spanish Agency for Data Protection. At the moment the transfer of the complaint was received from the AEPD, as we have already indicated, internal investigations were immediately initiated to clarify this matter. As part of these measures taken, clarification was requested from the delivery person regarding the delivery they made of the shipment subject to the complaint. The delivery person indicated that they delivered to an address different from that of the recipient, for which they apologized. We attach the delivery person's statement as ANNEX 8 to this document. At this point, we consider it essential to note that Correos Express provides instructions on how deliveries should be carried out to all its suppliers.

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that in turn are obliged to convey this information to all their drivers who deliver shipments for Correos Express. Furthermore, Correos Express periodically sends reminders to transport companies to reinforce this information, especially the importance of only delivering shipments to the recipients or third parties authorized by them. We attach as ANNEX 9 the latest communication sent to the provider DAFNEVIA, S.L., on October 3, 2023, reminding how deliveries of shipments operated by Correos Express should be carried out...”

THIRD: On November 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In this case, in accordance with the provisions of Article 4.1 of the GDPR, it is established that there is a processing of personal data, given that CORREOS EXPRESS carries out, among other treatments, the storage and use of the following personal data of individuals, such as: name, surname, location data, etc.

CORREOS EXPRESS carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the

GDPR.

Article 4, paragraph 12 of the GDPR broadly defines “personal data security breaches” (hereinafter security breach) as “all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of, or unauthorized communication or access to personal data transmitted, stored, or otherwise processed.”

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III

Presumption of Innocence

In this case, a complaint has been filed motivated by the delivery of a package intended for the complainant to a neighbor, which leads the complainant to consider that the confidentiality of their personal data may have been compromised. Specifically, the complainant has stated that their data included on the shipping label, among others, name and surname and postal data, were exposed to a third party (the neighbor).

This Agency understands that confidentiality is only compromised when access by a third party to personal data that is not public or previously known to that third party is enabled. Thus, the delivery of a package to a neighbor, when no additional data beyond what is strictly necessary for delivery (name and address) is included in the postal shipment, does not compromise the confidentiality of the recipient's personal data, as no personal data of the complainant that the recipient did not already know is disclosed.

In conclusion, in the case at hand, the examination of the documents provided in the transfer proceedings reveals the absence of evidence capable of justifying the initiation of a sanctioning procedure, as it has not been established that personal data of the complainant, beyond their name and address, were exposed to unauthorized third parties, since the package was delivered to a neighbor, and there is no record that any data unknown to her was disclosed. The delivery note issued by the courier company, submitted along with the complaint, does not serve to substantiate such a circumstance.

In this regard, it should be emphasized that in the administrative sanctioning field, the principles inspiring criminal law apply, with some nuances but without exceptions, and the principle of presumption of innocence has full effect, which must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions. The Constitutional Court in Judgment 76/1990 (STC) considers that the right to the presumption of innocence entails “that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal.”

In accordance with this approach, Article 53.2 of the LPACAP establishes that, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

“a) (...) b) To the presumption of non-existence of administrative responsibility until proven otherwise.

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As the Supreme Court specified in its Judgment of October 26, 1998, the validity of the principle of presumption of innocence “does not oppose the fact that judicial conviction in a process can be formed on the basis of circumstantial evidence, but for this evidence to undermine said presumption, it must satisfy the following constitutional requirements: the indications must be fully proven – they cannot be

mere suspicions – and it must explicitly state the reasoning by which, starting from the proven indications, it has reached the conclusion that the accused committed the infringing conduct, since otherwise, neither the subsumption would be grounded in law nor would there be a way to determine whether the deductive process is arbitrary, irrational, or absurd, that is, whether the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating."

In this regard, it is necessary to distinguish true circumstantial evidence from mere suspicions or conjectures. The Constitutional Court has stated in its Judgment 24/1997 that "the criteria for distinguishing between circumstantial evidence capable of undermining the presumption of innocence and mere suspicions are based on the following: a) The circumstantial evidence must stem from fully proven facts. b) The facts constituting the crime must be deduced from those indications (completely proven facts) through a reasoned mental process in accordance with the rules of human reasoning, as stated in the convicting judgment (SSTC 174/1985, 175/1985, 229/1988, 107/1989, 384/1993, and 206/1994, among others)."

In short, the principle of presumption of innocence prevents attributing an administrative infringement when there has not been obtained and verified incriminating evidence that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them.

In this case, as has been stated, there are no rational indications that would allow attributing to the claimed party the commission of the infringements of the personal data protection regulations reported, therefore, it cannot be considered that the right to the presumption of innocence that protects them has been undermined.

IV

Conclusion

Therefore, based on what has been indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute any responsibility for the exposure of the personal data of the claiming party, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

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SECOND: TO NOTIFY this resolution to CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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